

In other decisions too, the boards have observed that, when exercising their discretion, they must weigh up all the circumstances of the case. **The later** the claims are submitted, **the stricter the criteria** to be applied (on the convergent approach now enshrined in the RPBA 2020 and likewise based on this principle, see in particular V.A.4.1.2 "Primary object of the appeal proceedings and the 'convergent approach' to amendments made to party's case"). The subject-matter of the new claims should not diverge considerably from the claims already filed, in particular they should not contain subject matter which has not previously been claimed. The new claims should be clearly allowable in the sense that they do not introduce new objections under the EPC and overcome all outstanding objections under the EPC (T 1126/97, T 52/99, T 468/99, T 397/01, T 411/02, T 81/03, T 989/03, T 515/06).

New requests may exceptionally be admitted for reasons of procedural economy, even where not filed until a very late stage (e.g. during the oral proceedings), if the amendments are **justified**, e.g. where filed in response to objections or comments which were not part contained in the decision under appeal but were raised in writing during the appeal proceedings and moreover do not extend the scope of discussion as determined by the decision under appeal and the statement of grounds of appeal (T 1126/97, T 52/99, T 468/99, T 397/01, T 846/04, T 1109/05).

With regard to the proper exercise of discretion in deciding whether to admit requests filed by an appellant patentee which had not been submitted before the opposition division, the crucial questions asked by the boards in their early case law and in their case law on the RPBA 2003 and the RPBA 2007 was whether or not the amended claims of those requests were clearly allowable, whether they gave rise to new objections, whether or not there was proper justification for their late filing (so as to forestall tactical abuse) and whether they could deal with them without undue procedural delay (T 153/85, OJ 1988, 1; T 206/93; T 396/97; T 196/00; T 50/02; T 455/03; T 1333/05).

According to the settled case law, an appellant patentee who had lost before the opposition division thus had the right to have the rejected requests reconsidered by the board or to file new requests at a timely stage in the appeal proceedings, in particular together with the statement of grounds of appeal or the reply, provided there was no reason those new requests should already have been presented at first instance (on this, see chapters V.A.5.11.3 and V.A.5.11.4). If the patentee wanted other (further) requests filed at even later stage to be considered, the admission of these requests was a matter for the board's discretion (see also Art. 13(1) RPBA 2007), and not a matter of right (T 840/93, OJ 1996, 335; T 427/99; T 50/02; T 455/03; T 651/03; T 240/04; T 339/06). On the current position under the RPBA 2020, see chapter V.A.4 "New submissions on appeal – case law on RPBA 2020".

In addition to the factors referred to in Art. 13(1) RPBA 2007, the following criteria could, according to settled case law, likewise be decisive: there must be sound reasons for filing a request at a late stage in the proceedings, as may be the case where amendments are occasioned by developments during the proceedings or where the request addresses still outstanding objections. The amendments must be *prima facie* clearly allowable, and their introduction must not constitute an abuse of procedure. They must not extend the scope

of discussion determined by the grounds of appeal and the respondent's reply or introduce new facts on which the other party has had no opportunity to comment. Nor may they lead to an excessive delay in the proceedings. The time at which requests comprising amended claims were filed and the number of amended claim sets are also factors to be considered. Besides the timing of the request, an important factor is whether the various claim versions "converge" or "diverge", in other words whether they develop and increasingly limit the subject-matter of the independent claim of a main request in the same direction and/or in the direction of a single inventive idea, or whether they entail different lines of development because, for instance, they each incorporate different features. The scope of the amendment and the degree of difficulty or complexity involved in examining it are relevant, while the request's chances of success may also be important (see e.g., on the last point, T 951/91, OJ 1995, 202; T 81/03; T 942/05; T 1474/06; T 162/09; T 1634/09; T 376/10; T 683/10; T 484/11; T 409/12).

#### 5.12.2 Withdrawal and resubmission of a request on appeal

In T 1695/14 the auxiliary request in question, which the patent proprietor had filed during the oral proceedings, was the same as one of the auxiliary requests it had filed with its grounds of appeal. But the proprietor had not then pursued that original auxiliary request in the written proceedings, instead filing new auxiliary requests with a written submission stating that it wanted them to replace its previous ones. The board interpreted this statement as an implicit withdrawal of the auxiliary request (see T 388/12, T 52/15). The board then considered the relevant criteria for admitting a resubmitted request. Since a withdrawn request no longer formed part of the proceedings (see T 1732/10, T 143/14), its admission on resubmission later in them was subject to the same procedural standards as applied to an entirely new one (see T 1732/10, T 122/10); this was the boards' settled case law. Hence a request initially filed on appeal but implicitly or explicitly withdrawn later on in the proceedings had to be considered a new request when subsequently refiled. Its admission was then governed in particular by Art. 13 RPBA 2007 and the criteria for exercising discretion under it developed by the case law. See also chapter V.A.5.12.7 "Discretion to admit amended claims at any stage of the appeal proceedings".

#### 5.12.3 Clear allowability of amended claims

##### a) General

In accordance with the case law, the boards refuse to consider late-filed auxiliary requests on the ground that they are inadmissible where they are directed to subject-matter which prima facie is not allowable. Claims are clearly allowable if the board can quickly ascertain that they do not give rise to new objections and overcome all outstanding objections under the EPC and their patentability could be assessed without giving rise to any difficulty or delay (on this point, see T 153/85, OJ 1988, 1; T 270/90, OJ 1993, 725; T 955/91; T 92/93; T 401/95; T 862/00; T 1004/01; T 1202/02; T 922/03; T 87/05; T 1785/07; T 824/07; T 615/08; T 421/09; T 360/11). It must be immediately apparent to the board, with little investigative effort on its part, that the amendments made successfully address the issue raised, without giving rise to new ones (T 1634/09, T 1743/09). There must be no doubt that the late-filed requests meet the formal requirement and that they constitute a

promising attempt to counter all outstanding objections (T.33/07, T.321/07, T.1650/08, T.1168/08, T.1634/09).

The board in T.2227/12 stated in its catchword: where only objections under Art.123(2) and 84 EPC have been addressed in the contested decision and in the appeal proceedings, the board, in deciding whether to admit a request filed at the oral proceedings, need examine only whether it is prima facie allowable in view of those objections and need not examine its prima facie allowability under Art.52(1), 54 and 56 EPC.

#### b) Examples

In T.1004/01, the amendments to the claims related solely to a narrower definition of features and values which were so clear and straightforward that a person skilled in the art could easily understand them. It was not unusual, the board found, for several auxiliary requests to be submitted in appeal proceedings, since they were the patentee's last opportunity to have the patent maintained.

In T.1128/10, it was immediately apparent that the amendments made successfully addressed the issue raised without giving rise to new ones. Therefore, they were admitted into the proceedings.

In T.70/04, although the amendment indicated was a combination of two claims, it was quite extensive and raised new issues which had not yet been considered in the opposition or appeal proceedings, mainly because of a greatly increased number of variables compared to claim 1 as maintained.

In T.708/05 the board stated that the fact that a board of appeal reverses a conclusion reached in a decision at first instance is a matter which a party must always be prepared for.

#### 5.12.4 Response to objections

In their earlier decisions, the boards generally admitted amendments filed in response to comments and objections made by the rapporteur or the other party, although undesirable procedural delays were to be avoided (see T.38/89, T.459/91, T.1059/92, T.648/96). According to the case law on the RPBA 2003 and the RPBA 2007, amended claims could be admitted into the proceedings if the introduced amendments were properly justified, e.g. had been filed as a response to objections, evidence or comments not dealt with in the contested decision but submitted in writing during the appeal proceedings (T.397/01, T.253/10). They also had to constitute a promising attempt to counter any objection thus raised (T.1859/06).

In the cases below, the amended requests were admitted:

In T.93/11 the amendments were the direct result of the board's communication. Furthermore, they also overcame the formal objections of the board, which was

procedurally expedient. Finally, they simply narrowed down the subject-matter claimed to the core of the invention. The board further considered that there was no general prohibition on reacting to a board's communication by submitting new requests, let alone when these took account of all the objections raised or repeated therein.

In T 794/94, the board recognised that patents in the field of genetic engineering sometimes gave rise to exceptional problems which made it difficult to formulate a suitable request and therefore amounted to exceptional circumstances justifying late submission of requests designed to meet objections which had already been considered at length (see also T 607/05, T 516/06).

In T 1148/97, the board took the view that late-filed claims could still be admitted if the amendments limited the scope of the subject-matter claimed to such an extent that revocation of the patent could be avoided and maintenance of the patent as amended ordered after swiftly conducted proceedings (T 710/99, T 30/03).

In T 385/06 the patent proprietor filed amendments before the final date set in the board's communication. In the judgment of the board, these amendments might be seen as a response to the board's observations relating to two grounds for opposition.

In T 610/94 too, the board admitted sets of claims filed during the oral proceedings because they had been limited and took account of the deficiencies it had identified.

In T 626/90, there was no question of the appellants having been unfairly taken by surprise, because the amendments in both requests were nothing more than a limitation of the claimed subject-matter to preferred embodiments of the invention as described in the patent in suit (T 1097/99).

In T 407/14, the additional feature in claim 1 of the main request amounted to a clear limitation of the claimed subject-matter. The board held it to be a legitimate response on the part of the appellant to the preliminary opinion of a lack of inventive step.

In T 442/12 the late-filed request was admitted because it was prima facie a promising attempt to overcome all the objections set out in the board's communication and detailed supporting reasons had been given.

In T 2475/16 the deletion of all method claims in auxiliary request 1, filed by the appellant (proprietor) during the oral proceedings before the board, had rendered all objections raised against these claims moot. Only those objections that the other parties had validly raised against the granted apparatus claims remained. The board observed that, because these objections were the same issues as previously raised, they did not give rise to any new ones. The board decided to admit auxiliary request 1 into the proceedings (Art. 13(1) and (3) RPBA 2007).

### 5.12.5 Converging or diverging versions of claims

According to the case law of the boards of appeal on the RPBA 2003 and RPBA 2007, the admissibility of amendments depends, among other things, on whether the amended claims converge with or diverge from the subject-matter previously claimed, i.e. whether they develop and increasingly limit the subject-matter of the independent claim of a main request in the same direction and/or in the direction of a single inventive idea, or whether they entail different lines of development because, for instance, they each incorporate different features (T.240/04, T.1474/06, T.1685/07, T.980/08, T.1589/08, T.1690/08, T.1969/08, T.162/09, T.2513/11, T.310/17). Whether the claims of auxiliary requests converge is to be understood in the sense that the subject-matter of the lower ranking requests is further defined i.e. with the intention to counter objections with regard to the preceding requests (T.1134/11).

In T.565/07 the board ruled that although patentees too should be able in principle, under R. 80 EPC, to limit a patent's subject-matter by including the features of a dependent claim in response to objections that the granted independent claim was not patentable, if they exercised that right repeatedly in a variety of directions – e.g. by filing requests in parallel or in sequence – the board would end up having to decide in which of several versions the patent was to be maintained. That would be at odds with Art. 113(2) EPC (on this point, see T.382/96, T.446/00, T.1685/07).

In T.1685/07, the board ruled that, when deciding whether to admit new requests first introduced during the appeal proceedings (here: only after the summons to oral proceedings), it was particularly important to ascertain whether the applicant or patent proprietor submitting more than one request was following a consistent line of defence in its various requests and not, particularly towards the end of the proceedings, using a "screen" of different versions of claims to create, for both the other party and the board of appeal, an obscure and unacceptable procedural situation in which they were obliged to select from a multiplicity of varying versions the one which could in the final analysis be valid.

In T.649/14 the board stated that the convergency request was not bound to the date of filing of a request. It should be met at the current state of the proceedings.

In T.100/13 a proprietor had filed divergent auxiliary requests addressing a variety of points at a very late stage in the proceedings, namely after the oral proceedings had been arranged, without stating why they should be allowed over the cited prior art. The board found that, in these circumstances, neither it nor the other party could reasonably be expected to discuss their patentability for the first time at the oral proceedings.

In T.1750/08 the board admitted the auxiliary request because the amendment as a further limitation of a feature that underlay the opposition division's decision to maintain the patent in amended form and that was already central to the discussions in the appeal (converging request).